

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

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AVERY SIMMS,

Plaintiff,

Plaintiff designates
BRONX County as the place of trial

-against-

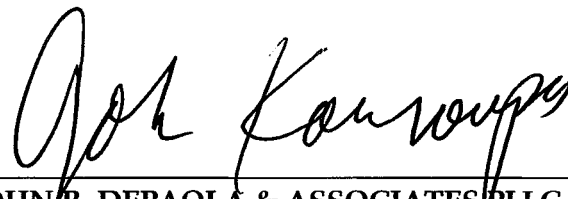
The basis of the venue is where the
the tort arose and Plaintiff resides.THE CITY OF NEW YORK, IGNACIO RODRIGUEZ
P.O. OF THE 47 PCT., SHIELD #14591, TAX ID
#955397, OTHER CITY OF NEW YORK POLICE
OFFICERS INVOLVED IN ARREST #B17656599
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON NOVEMBER 6,
2017, AND NO OTHER DATE,SUMMONS

Plaintiff resides at

AVERY SIMMS
911 East 227th Street
Bronx, New York 10466Defendants.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 21, 2018JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN K. KOUROUPAS, ESQ.*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**IGNACIO RODRIGUEZ P.O. OF THE 47 PCT.
SHIELD #14591, TAX ID #955397**

4111 Laconia Avenue
Bronx, New York 10466

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF BRONX

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AVERY SIMMS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, IGNACIO RODRIGUEZ
P.O. OF THE 47 PCT., SHIELD #14591, TAX ID
#955397, OTHER CITY OF NEW YORK POLICE
OFFICERS INVOLVED IN ARREST #B17656599
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON NOVEMBER 6,
2017, AND NO OTHER DATE,

Defendants.

-----X

AVERY SIMMS, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff AVERY SIMMS was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 31st day of January, 2018 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant, **CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about November 6, 2017, at approximately 9:00 A.M., which the police state occurred at approximately 10:43 A.M., in the vicinity of East 219th Street and White Plains Road, County of Bronx, State of New York, the Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID**

#955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, AVERY SIMMS, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about November 6, 2017, at approximately 9:00 A.M., which the police state occurred at approximately 10:43 A.M., in the vicinity of East 219th Street and White Plains Road, County of Bronx, State of New York, the Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally did place Plaintiff, AVERY SIMMS, in imminent fear of physical contact by approaching the Plaintiff and restraining the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about November 6, 2017, at approximately 9:00 A.M., which the police state occurred at approximately 10:43 A.M., in the vicinity of East 219th Street and White Plains Road, County of Bronx, State of New York, the Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a local precinct in the County of Bronx. There charged him with the crimes on Arrest No.: B17656599 and Summons #4440934539. Said Summons was dismissed because the NYPD failed to file a legally acceptable accusatory instrument with the Court. The Plaintiff was thereafter held in custody, at Bronx Central Booking, over the course of two (2) days or approximately thirty-two (32) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this incident, the Plaintiff had gone to a restaurant to eat with his friend. Plaintiff's friend had left his car double-parked outside because he couldn't find a parking spot. A police car

pulls behind his friend's double-parked vehicle. When Plaintiff realized the officers were looking at the car, Plaintiff went outside to let the officers know that his friend was going to move the car so to avoid getting a ticket. One of the officers asked Plaintiff for his license and Plaintiff complied and gave the officer his license. The officer told him to go back inside the restaurant. So a few minutes later Plaintiff went back outside with his friend to get his license from the officer and as he was walking out the officer told Plaintiff to get into his friend's car which Plaintiff did. Shortly thereafter while Plaintiff was in his friend's car; the officers hit the car the Plaintiff and his friend had arrived in. When that happened, Plaintiff opened the door of the car and he collapsed on the floor because he has a pinched nerve on his back. The officer told him to get up that he wasn't going to get arrested. The other officers gets out of car and tells his partner "What are you doing? What are we going to tell the sergeant?" Plaintiff asked the officers to call an ambulance because he was in substantial pain. The officer told him if you call an ambulance, I'm going to have to arrest you. Plaintiff called an ambulance and the officers arrested him. The officers said they arrested him because he had a suspended license but Plaintiff wasn't even driving his friend's car.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. On or about November 6, 2017, at approximately 9:00 A.M., which the police state occurred at approximately 10:43 A.M., in the vicinity of East 219th Street and White Plains Road, County of Bronx, State of New York, the Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's jail facilities, to wit a local police precinct holding cell, and to Central Booking. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately thirty-two (32) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this incident, the Plaintiff had gone to a restaurant to eat with his friend. Plaintiff's friend had left car double-parked outside because he couldn't find a parking spot. A police car pulls behind his friend's double-parked vehicle. When Plaintiff realized the officers were looking at the car, Plaintiff went outside to let the officers know that his friend was going to move the car to avoid getting a ticket. One of the officers asked Plaintiff for his license and Plaintiff complied and gave the officer his license. The officer told him to go back inside the restaurant. So a few minutes later

Plaintiff went back outside to get his license from the officer and as he was walking out the officer told Plaintiff to get into the car the officers were driving. Plaintiff got scared and instead he got into his friend's car; the officers hit the car the Plaintiff and his friends had arrived in. When that happened, Plaintiff opened the door of the car and he collapsed on the floor because he has a pinched nerve on his back. The officer told him to get up that he wasn't going to get arrested. The other officers get out of car and tells his partner "What are you doing? What are we going to tell the sergeant? Plaintiff asked the officers to call an ambulance because he was in a lot of pain. The officer told him if you call an ambulance, I'm going to have to arrest you. Plaintiff called an ambulance and the officers arrested him. The officers said they arrested him because he had a suspended license but Plaintiff wasn't even driving the car.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants, IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, were at all

times relevant, duly appointed and acting officers of the City of New York Police Department.

16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff, **AVERY SIMMS**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
19. On or about November 6, 2017, the Defendants, while effectuating the arrest of the Plaintiff, **AVERY SIMMS**, did grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In this incident, the Plaintiff had gone to a restaurant to eat with his friend. Plaintiff's friend had left car double-parked outside because he couldn't find a parking spot. A police car pulls behind their double-parked vehicle. When Plaintiff realized the officers were looking at the car, Plaintiff went outside to let the officers know that his friend was going to move the car so to avoid getting a ticket. One of the officers asked Plaintiff for his license and Plaintiff complied and gave the

officer his license. The officer told him to go back inside the restaurant. So a few minutes later Plaintiff went back outside to get his license from the officer and as he was walking out the officer told Plaintiff to get into the car the officers were driving. Plaintiff got scared and instead he got into his friend's car; the officers hit the car the Plaintiff and his friends had arrived in. When that happened, Plaintiff opened the door of the car and he collapsed on the floor because he has a pinched nerve on his back. The officer told him to get up that he wasn't going to get arrested. The other officers get out of car and tells his partner "what are you doing? what are we going to tell the sergeant? Plaintiff asked the officers to call an ambulance because he was in a lot of pain. The officer told him if you call an ambulance, I'm going to have to arrest you. Plaintiff called an ambulance and the officers arrested him. The officers said they arrested him because he had a suspended license but Plaintiff wasn't even driving the car. NYPD officers were inside a vehicle, intentionally, negligently and/or recklessly made contact with Plaintiff's vehicle causing him serious injuries. Plaintiff was taken to Jacobi Medical center for treatment of injuries sustained during his false arrest. **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397** was the arresting officer and along with NYPD officers named herein as **JOHN/JANE DOE I-IV** processed the arrest of the Plaintiff. The NYPD officers provided false statements that led to the arrest of the Plaintiff. **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397** grabbed the person of the Plaintiff and handcuffed him. The Plaintiff had committed no violation of the law.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
 - h. Freedom from being illegally searched.
21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.
24. Defendant, **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and

seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely

arrest, seize illegally and search the Plaintiff commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN SEVENTH CAUSE OF ACTION

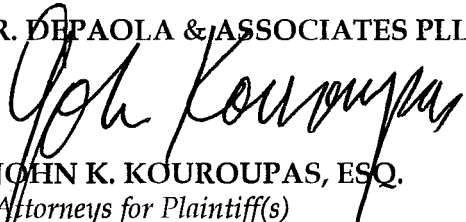
28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
December 21, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN K. KOUROUPAS, ESQ.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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AVERY SIMMS,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, IGNACIO RODRIGUEZ
P.O. OF THE 47 PCT., SHIELD #14591, TAX ID
#955397, OTHER CITY OF NEW YORK POLICE
OFFICERS INVOLVED IN ARREST #B17656599
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THE INCIDENT THAT AROSE ON NOVEMBER 6,
2017, AND NO OTHER DATE,

Defendants.
-----X

I, JOHN K. KOUROUPAS, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 21, 2018



JOHN K. KOUROUPAS, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AVERY SIMMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, IGNACIO RODRIGUEZ P.O. OF THE 47 PCT., SHIELD #14591, TAX ID #955397, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17656599 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON NOVEMBER 6, 2017, AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN K. KOUROUPAS
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for